

By-Laws of Ghatkopar Welfare Association

These By-Laws govern the operation and administration of Ghatkopar Welfare Association (CIN: U88900MH2024NPL420643), a Section 8 Company incorporated under the Companies Act, 2013. Established as a not-for-profit organization, the Association is committed to social welfare, humanitarian services, and community development across Ghatkopar and surrounding regions. These By-Laws ensure transparent governance, ethical operations, and compliance with all applicable statutory requirements whilst protecting the interests and objectives of the Association.



Legal Framework and Foundational Definitions

Legal Status and Compliance

The Ghatkopar Welfare Association operates under the comprehensive regulatory framework of Section 8 of the Companies Act, 2013, which provides special provisions for companies established to promote commerce, art, science, sports, education, research, social welfare, religion, charity, protection of environment, or any such other object. This legal structure ensures that the Association functions strictly as a not-for-profit entity with all income and property applied solely towards achieving its registered charitable objectives.

The Association maintains its corporate identity through CIN U88900MH2024NPL420643 and adheres to all statutory compliance requirements including annual filings, board governance norms, and financial reporting standards. No portion of the Association's income or assets shall be distributed, directly or indirectly, to its members, directors, or office bearers except as bona fide reimbursement of legitimate expenses incurred in furtherance of the Association's charitable purposes.

Key Definitions

"Act" refers to the Companies Act, 2013 and all rules, regulations, and amendments made thereunder.

"Association" means Ghatkopar Welfare Association as incorporated under Section 8.

"Board" denotes the Board of Directors constituted to govern the Association.

"Member" refers to any person admitted to membership in accordance with these By-Laws and the Articles of Association.

"Office Bearer" includes all designated officials holding positions of responsibility within the Association's governance structure.

Corporate Registration	Not-for-Profit Status	Statutory Compliance	Asset Protection
Section 8 Company under Companies Act, 2013	All income applied towards charitable objectives	Full adherence to regulatory requirements	No distribution of surplus to members or directors

Objects, Membership Structure and Governance Rights

Primary Charitable Objects

The Association is established to promote and advance a comprehensive range of social welfare and humanitarian objectives that benefit the community at large. These objects form the fundamental purpose of the Association and all activities, programmes, and initiatives must align with these registered charitable purposes. The Association's commitment extends across multiple domains of social development, ensuring holistic community upliftment and sustainable progress.



Food Security Initiatives

Implementing programmes to combat hunger and malnutrition through food distribution, community kitchens, and nutrition awareness campaigns.



Healthcare Services

Providing medical assistance, health camps, preventive care, and facilitating access to quality healthcare for underserved populations.



Educational Development

Promoting literacy, skill training, vocational education, and scholarship programmes to empower youth and enhance employability.



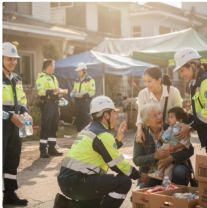
Women Empowerment

Supporting women's rights, economic independence, skill development, and social inclusion through targeted intervention programmes.



Environmental Protection

Undertaking initiatives for environmental conservation, waste management, green cover enhancement, and sustainable development practices.



Disaster Relief

Providing immediate relief, rehabilitation support, and long-term recovery assistance to communities affected by natural or man-made disasters.

Membership Categories and Rights

Membership in the Association is open to individuals above 18 years of age who support and align with the charitable objectives of the organization. The Board of Directors shall review and approve all membership applications based on prescribed criteria, ensuring that prospective members demonstrate genuine commitment to the Association's mission. Membership confers certain rights including participation in general meetings, voting on resolutions, and contributing to the Association's governance within the framework established by these By-Laws.

			
Ordinary Member Standard membership category with full participation rights in meetings and activities as per By-Laws.	Active Member Members actively engaged in Association programmes with enhanced involvement in operational activities.	Honorary Member Distinguished individuals conferred honorary status in recognition of exceptional contributions to social welfare.	Advisory Member Experts and professionals providing guidance, technical expertise, and strategic counsel to the Association.

☐ **Important Note:** Membership may be terminated by the Board in cases of rule violation, misconduct, non-payment of dues, or voluntary resignation. The Board's decision in such matters shall be final, subject to principles of natural justice and the member's right to be heard before any adverse action is taken.

Board Composition, Powers and Office Bearer Responsibilities

Governing Body Structure

The Association shall be governed by a Board of Directors comprising eleven (11) members who shall collectively exercise superintendence, direction, and control over the affairs of the Association. This carefully structured governance model ensures balanced decision-making, accountability, and efficient execution of the Association's charitable objectives. Each Board member assumes specific responsibilities whilst also contributing to collective governance through participation in Board meetings, committee work, and strategic planning initiatives.



This governance structure provides clear lines of authority whilst promoting collaborative decision-making and ensuring that diverse perspectives inform the Association's policies and programmes.

Powers and Functions of the Board

The Board of Directors is vested with comprehensive powers to manage, administer, and direct all affairs of the Association in accordance with the Companies Act, 2013, these By-Laws, and the Articles of Association. The Board's authority extends to all matters necessary for achieving the Association's charitable objects, subject to statutory limitations and fiduciary duties owed to the Association and its beneficiaries. The Board shall exercise its powers collectively through properly constituted meetings and recorded resolutions.

 Policy Formulation Developing comprehensive policies, guidelines, and standard operating procedures governing all aspects of the Association's operations and programmes.	 Budget Approval Reviewing and approving annual budgets, financial plans, and resource allocation strategies to ensure optimal utilization of funds for charitable purposes.	 Committee Constitution Appointing sub-committees, working groups, and advisory panels to handle specialized functions and enhance operational efficiency.	 Contractual Authority Entering into agreements, memoranda of understanding, partnerships, and collaborations that advance the Association's charitable objectives.
 Project Oversight Approving, monitoring, and evaluating charitable projects and programmes to ensure alignment with objectives and effective implementation.	 Compliance Assurance Ensuring full compliance with all statutory, regulatory, and legal requirements applicable to Section 8 companies and charitable organizations.		

Duties of Office Bearers

Each office bearer assumes specific functional responsibilities that collectively ensure smooth governance and operations. The Chairman provides overall leadership and governance oversight, presiding over all meetings with authority to guide discussions and ensure orderly conduct. The President supervises the Association's strategic direction and organizational functioning, whilst the Director handles day-to-day execution of policies and operational management. The General Secretary maintains comprehensive records including meeting minutes, correspondence, membership registers, and statutory documents. The Treasurer manages all financial operations including accounting, banking, taxation, and financial compliance. Joint Secretary and Joint Treasurer provide support in their respective domains, whilst the Medical Unit Head oversees all healthcare-related initiatives and programmes. Additional core committee members perform duties as assigned by the Board, contributing their expertise to specific functional areas or project implementations.

Financial Management, Meetings, Amendments and Dissolution

Financial Administration and Accountability

The Association maintains rigorous financial management systems to ensure transparency, accountability, and proper utilization of funds for charitable purposes. The financial year shall run from 1st April to 31st March, aligning with the Indian fiscal calendar and facilitating statutory compliance. All funds, donations, grants, and contributions shall be deposited in scheduled bank accounts maintained in the name of the Association, with no personal accounts being used for Association transactions. Complete and accurate accounting records shall be maintained in accordance with applicable accounting standards and statutory requirements.

Donations and Grants Management

The Association may receive donations, contributions, CSR funds, and grants from individuals, corporations, trusts, foundations, government bodies, and international organizations, provided such receipts comply with FCRA provisions where applicable. All donations shall be properly acknowledged through official receipts, recorded in the books of accounts, and utilized strictly for the charitable purposes for which they were received or for general charitable objectives of the Association.

The Association shall maintain eligibility for tax exemptions under Section 12A and deductions under Section 80G of the Income Tax Act, ensuring that donors receive appropriate tax benefits for their contributions. Detailed utilization reports shall be maintained demonstrating that donations are applied towards charitable activities in accordance with regulatory requirements and donor intent.

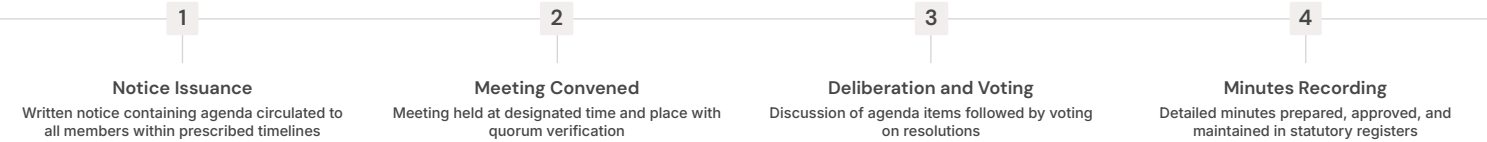
Audit and Financial Reporting

Annual accounts shall be audited by a qualified Chartered Accountant appointed in accordance with the Companies Act, 2013. The audited financial statements, including Balance Sheet, Income and Expenditure Account, and Cash Flow Statement, shall be placed before the Annual General Meeting for consideration and adoption by members.

The Association shall file all required statutory returns including annual returns with the Registrar of Companies, income tax returns, and any other filings mandated under applicable laws. Financial transparency shall be maintained through appropriate disclosures and making information available to stakeholders as required by law.

Meetings and Decision-Making Processes

The Association shall conduct its governance through properly constituted meetings held in accordance with statutory requirements and these By-Laws. The Annual General Meeting (AGM) shall be held once every financial year within the statutory timeframe, providing members with an opportunity to review the Association's performance, approve accounts, and participate in key decisions. Board meetings shall be conducted periodically as required for effective governance, with adequate notice provided to all directors. The quorum for meetings shall be one-third of total Board members or as prescribed by the Companies Act, 2013, whichever is higher, ensuring that decisions represent adequate board representation.



Decisions shall be taken by majority vote of members present and voting, with the Chairman exercising a casting vote in case of equality. All proceedings shall be minuted and maintained in accordance with statutory requirements, ensuring proper documentation of all governance actions and decisions.

Amendment of By-Laws

These By-Laws may be amended, modified, or supplemented through a special resolution passed by the Board or members in accordance with the provisions of the Companies Act, 2013. Any proposed amendment shall be circulated to members with adequate notice, allowing for informed consideration and discussion. Amendments shall not contravene any statutory provisions, the Articles of Association, or the registered objects of the Association. All amendments shall be filed with the Registrar of Companies and shall take effect from the date of filing or such other date as may be specified in the resolution.

Dissolution and Asset Distribution

In the event that the Association is dissolved in accordance with the provisions of the Companies Act, 2013, all assets remaining after satisfaction of debts and liabilities shall be transferred to another Section 8 Company, registered charitable trust, or institution having objects similar to those of the Association. Under no circumstances shall any surplus assets be distributed to members, directors, or office bearers of the Association. The dissolution process shall comply with all statutory requirements including obtaining necessary approvals from the Registrar of Companies and Official Liquidator, ensuring proper accounting for all assets and liabilities, and maintaining transparency throughout the winding-up process.

Compliance and Ethical Conduct: The Association is committed to maintaining the highest standards of compliance, transparency, accountability, and ethical conduct in all its operations. All office bearers, directors, members, employees, and volunteers shall adhere to applicable laws, regulations, these By-Laws, and the Code of Conduct adopted by the Association. Any violations shall be addressed through appropriate mechanisms ensuring fair procedures and natural justice.	
Legal Compliance Full adherence to Companies Act, 2013, Income Tax Act, and all applicable regulatory frameworks	Transparency Open disclosure of operations, finances, and governance to all stakeholders
Accountability Clear responsibility frameworks with regular reporting and performance evaluation	Ethical Conduct Commitment to integrity, honesty, and ethical behaviour in all dealings and relationships

Declaration: These By-Laws are adopted by the Governing Body of Ghatkopar Welfare Association (CIN: U88900MH2024NPL420643), a Section 8 Company registered under the Companies Act, 2013, and shall govern the operations, administration, and governance of the Association in furtherance of its charitable objectives for the benefit of society.